

Issuer: Riigikogu  
Type: act  
In force from: 01.09.2019  
In force until: 31.03.2022  
Translation published: 23.05.2019

## Vocational Educational Institutions Act

Passed 12.06.2013  
RT I, 02.07.2013, 1  
Entry into force 01.09.2013

### Chapter 1 General Provisions

#### § 1. Scope of application of Act

(1) The Vocational Educational Institutions Act provides the bases for the establishment, maintenance, transfer, reorganisation and closure of vocational educational institutions (hereinafter schools), the bases for the right to provide instruction, management, organisation of studies and financing, the functions of schools, the rights and obligations of members of schools, and administrative supervision over the activities of schools.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(2) The provisions of this Act apply to private schools insofar as the Private Schools Act does not provide otherwise. The provisions of this Act apply to institutions of professional higher education within the scope provided for in the Higher Education Act.

[RT I, 19.03.2019, 12 - entry into force 01.09.2019]

(3) The provisions of the Administrative Procedure Act apply to administrative proceedings prescribed in this Act, taking account of the specifications provided for in this Act.

#### § 2. Vocational training and learning outcomes

(1) For the purposes of this Act, vocational training means the aggregate of learning, teaching and organisational activities the purpose of which is to enable the acquisition of vocational education.

(2) For the purposes of this Act, learning outcomes mean the knowledge, skills and attitudes acquired as the result of learning which have been described in the minimum level necessary for the completion of a curriculum, module, topic or subject. The achievement of learning outcomes at a level exceeding the minimum shall be differentiated with an assessment, if necessary.

#### § 3. Functions and obligations upon organisation of vocational training

(1) Vocational training shall be organised by schools. The purpose of organisation of vocational training is to create the possibilities for the formation of such individuals who possess the knowledge, skills and attitudes or competencies, and the experience and social readiness for working, participating in social life and for lifelong learning. In order to achieve the given purpose, the school shall perform the following main functions:

- 1) support the acquisition of competencies necessary for self-realisation and development, civil activity, social involvement, continuing education and employment (hereinafter key competencies) in order to enable the learner to manage successfully in the changing learning, physical and social and working environment;
- 2) support the formation of the student's vocational, professional and occupational competence in order to enable the student to perform successfully in the labour market;
- 3) develop and support the student's motivation for participation in lifelong learning.

(2) In order to perform the main functions and ensure the quality of education, the school shall:

- 1) organise teaching and education in formal education and continuing education in order to support the development of all learners;
- 2) ensure that learners have access to the support services, including career counselling, learning assistance, special needs and social educational and psychological services and access to the health services provided for in this Act;
- 3) conduct educational, methodological and technological development work in the taught areas;
- 4) ensure the availability of education by the creation of flexible learning possibilities for different target groups;
- 5) create possibilities for the catering and accommodation of pupils and support access to the related services;
- 6) create conditions for the hobby and self-initiative activities of pupils and support access to the related services;
- 7) ensure the mental and physical safety and health protection of learners during their stay at school;
- 8) cooperate nationally and internationally with other educational institutions, employees, employers, business and professional associations, undertakings and institutions related to the specialty (hereinafter social partners), local governments and other partners in order to establish the need for training, improve the quality of education and other relevant purposes;
- 9) ensure the work organisation and working environment for the employees for the performance of functions imposed thereon and the possibilities for self-development;
- 10) ensure the maintenance and development of the school's infrastructure;
- 11) form the reputation of the school and vocational education purposefully;
- 12) may provide services for a fee and sell products on the grounds provided for in the statutes of the school in order to support teaching and education and use its assets expediently and economically.

(3) The state shall ensure access to vocational training in all counties.

#### § 4. Legal status of school

(1) State schools are state agencies administered by the Ministry of Education and Research. The manager of a state school shall be the state represented by the Ministry of Education and Research.

- (2) Municipal schools are local government agencies. The manager of a municipal school shall be the city or rural municipality.
- (3) State and municipal schools may perform economic activities for the performance of functions established in the curriculum and statutes of the school or in connection therewith. The notification or licence obligation shall not be applied to such economic activities whereas the provisions governing the relevant economic activities shall be applied.
- (4) If the economic activity of the school is targeted to the production of goods and to the provision of services for consumers, it must be expressed in a way which is understandable for consumers.

## **Chapter 2**

### **Establishment, Source Documents and Name of School**

#### **§ 5. Establishment**

- (1) A state school shall be established by the minister responsible for the area.
- (2) A municipal school shall be established by the rural municipality or city council.
- (3) After the establishment of a school the manager of a school shall apply for the right to provide instruction from the minister responsible for the area on the conditions and pursuant to the procedure provided for in this Act.  
[RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- (4) The data of the school shall be entered in the Estonian Education Information System (hereinafter Education Information System) founded on the basis of subsection 36<sup>6</sup> (4) of the Republic of Estonia Education Act.
- (5) State and municipal schools shall be registered in the state register of state and local government agencies.

#### **§ 6. Statutes and development plan of school**

- (1) A school shall have the statutes and development plan.
- (2) The statutes of a school shall be established by the manager of a school and the development plan of a school shall be approved by the manager of a school or a representative authorised thereby.
- (3) The statutes of a state school shall be established by a regulation of the minister responsible for the area.
- (4) The development plan of a school shall be prepared for at least three years and it shall set out the main objectives of development of the school and the methods of application thereof based on nationally strategic documents.
- (5) The head of school shall organise the publishing of the development plan on the school's website.

#### **§ 7. Name of school**

The name of a school shall not be misleading.

## **Chapter 3**

### **Right to Provide Instruction and Assessment of Quality**

**[RT I, 28.12.2018, 3 - entry into force 01.01.2019]**

#### **§ 8. Right to provide instruction**

- (1) The right to provide instruction means the right granted to a school for a specified term or without a term to provide formal education in the relevant curriculum group with a directive of the minister responsible for the area.  
[RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- (2) The right to provide instruction shall be granted upon the establishment of a new school or opening formal education in a new curriculum group at a school holding the right to provide instruction.
- (3) For the purposes of this Act, a curriculum group means the classification category of curricula used upon the organisation of vocational training and which has been described in the Vocational Education Standard.
- (4) Instruction in schools may also be carried out according to a curriculum of professional higher education which is in conformity with the Standard of Higher Education. The provisions of the Higher Education Act concerning the organisation and financing of professional higher education and the assessment of quality apply to the implementation of curricula of professional higher education in schools and the corresponding functions of the Rector, the board and the advisory body of the institution of professional higher education shall be performed by the head of school, the school board and the advisory body according to their competence to the extent and pursuant to the procedure established by the statutes of the school.  
[RT I, 19.03.2019, 12 - entry into force 01.09.2019]
- (5) [Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]

#### **§ 9. Application for right to provide instruction upon establishment of school**

[RT I, 28.12.2018, 3 - entry into force 01.01.2019]

- (1) In order to receive the right to provide instruction upon the establishment of school, the manager of a school shall submit an application to the Ministry of Education and Research no later than six months before the planned commencement of studies.
- (2) The following documents shall be appended to the application:
- 1) curriculum complying with the requirements provided for in the legislation;
  - 2) list of positions of teaching and education employees complying with the qualification requirements;
- [RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- 3) the assessment of competent authorities concerning health and the compliance of premises intended for studies with the safety requirements;
- [RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- 4) statutes of the school;

- 5) draft development plan of the school;
- 6) establishment resolution of the school;
- 7) written opinion of the local government association on the need to establish the school and open study;

[RT I, 04.07.2017, 1 – entry into force 01.09.2017]

- 8) written opinions of the social partners corresponding to the curriculum group on the need to establish the school and open study;
- 9) written consent of the school health care provider to provide services and confirmation on the existence of school health care service activity licence.

(3) Before the submission of an application, the manager of municipal school shall pay the state fee.

(4) An application shall not be submitted upon the establishment of state school, the documents listed in subsection (2) of this section shall be assembled by the Minister of Education and Research no later than six months before the planned commencement of studies.

#### **§ 10. Application for right to provide instruction upon opening study in new curriculum group**

[RT I, 28.12.2018, 3 - entry into force 01.01.2019]

(1) In order to receive the right to provide instruction in a new curriculum group, except for in a personal development curriculum group, the school shall submit an application to the Ministry of Education and Research no later than six months before the planned commencement of studies. A municipal school shall coordinate the application before the submission thereof with the manager of the school.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(2) The following documents shall be appended to the application:

- 1) the documents listed in clauses 9 (2) 1)–3) of this Act;
- 2) the development programme of the school;
- 3) written opinion of the advisory body of the school on opening formal education in a new curriculum group;
- 4) written opinion of the local government association on the need to open formal education in a new curriculum group;

[RT I, 04.07.2017, 1 – entry into force 01.09.2017]

5) written opinions of the social partners corresponding to the curriculum group on the need to open formal education in a new curriculum group.

(3) Before the submission of an application, the municipal school shall pay the state fee.

#### **§ 10<sup>1</sup>. Application for right to provide instruction in personal development curriculum group**

(1) In order to commence the provision of instruction in personal development curriculum group according to the choice of profession curriculum, a school shall submit an application and the relevant curriculum to the minister responsible for the area at least three months before the commencement of studies.

(2) To satisfy the application, the minister responsible for the area shall evaluate the compliance of the choice of profession curriculum with the requirements of the Vocational Education Standard.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

#### **§ 11. Assessment**

(1) An assessment of a curriculum group shall be conducted by the Ministry of Education and Research upon granting the right to provide instruction. The Ministry of Education and Research may authorise a state foundation or a person elected under the Administrative Co-operation Act to conduct the assessment by entering into an administrative contract therefor. The Ministry of Education and Research shall exercise supervision over compliance with the administrative contract. In the course of the assessment the following shall be evaluated:

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

1) whether the learning outcomes provided for in the curriculum can be achieved and the compliance thereof with the requirements of the Vocational Education Standard;

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

2) whether the number of positions of teaching and education employees complying with the planned qualification requirements is sufficient for the provision of instruction in a curriculum group;

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

3) whether the resources necessary for the provision of instruction in a curriculum group are sufficient;

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

4) whether the study to be opened is sustainable pursuant to the development plan;

5) whether the study to be opened is purposeful in view of the labour market forecast, existence of potential pupils, opinions provided in clauses 9 (2) 7) and 8) and clauses 10 (2) 4) and 5) and evidence-based nature of studies.

(1<sup>1</sup>) If a school having received the right to provide instruction for a specified term applies for the conduct of a repeated assessment in a relevant curriculum group, an internal assessment report shall be added to the application for a repeated assessment.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(1<sup>2</sup>) In the course of a repeated assessment the provisions of clauses (1) 1–3 of this section shall be assessed based on the internal assessment report added to the assessment application.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(2) The costs of assessment shall be covered by the applicant for the right to provide instruction. The costs of assessment and the procedure for covering thereof shall be approved with the directive of the minister responsible for the area whereas the cost shall not exceed 1200 euros.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(3) An assessment shall be conducted after the costs of assessment approved with a directive have been covered in time.

(4) If the right to provide instruction is granted pursuant to the procedure provided for in subsection 9 (4) of this Act, the costs of assessment shall be covered by the Ministry of Education and Research.

**§ 12. Granting of right to provide instruction and refusal thereof**

(1) The minister responsible for the area shall decide the granting of the right to provide instruction on the basis of documents submitted on the basis of section 9 or 10 of this Act and the assessment provided for in section 11 of this Act and additional evidence, if necessary, and shall make one of the following decisions:

- 1) to grant the right to provide instruction without a term;
- 2) to grant the right to provide instruction for three years;
- 3) not to grant the right to provide instruction.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(2) The minister responsible for the area shall not grant the right to provide instruction if at least one of the following circumstances exists:

- 1) the documents submitted by the applicant on the basis of the provisions of section 9 or 10 of this Act do not comply with the requirements established by the legislation;
- 2) the result of assessment conducted pursuant to the procedure provided for in section 11 of this Act is negative.

(3) The term of proceeding the application for the right to provide instruction shall be four months since the submission of an application.

(4) The directive on granting the right to provide instruction or refusal thereof shall be delivered to the applicant according to the applicant's request whether by post or electronic means.

(5) [Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(6) If a school provides instruction in a curriculum group only at a custodial institution, the school shall be granted, with the directive of a minister, the right to provide instruction in the curriculum group without a term for the provision of instruction at a custodial institution.

**§ 13. Extension of right to provide instruction**

[Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]

**§ 14. Revocation of right to provide instruction and termination thereof**

[RT I, 28.12.2018, 3 - entry into force 01.01.2019]

(1) The minister responsible for the area shall have the right to revoke the right to provide instruction if at least one of the following circumstances exists:

- 1) it becomes evident that the activity of the school is in conflict with an act or legislation established on the basis thereof;
- 2) the school or the manager of a school has not complied with a precept issued as a result of supervision by the prescribed term and pursuant to the prescribed procedure;
- 3) the school has not commenced studies in the relevant curriculum group within twelve months after the receipt of the right to provide instruction or studies in the relevant curriculum group have been suspended for 12 consecutive months;
- 4) the school has submitted false information upon the application for the right to provide instruction or the assessment of quality;
- 5) significant non-conformities with the assessment criteria established by the assessment council formed on the basis of § 14<sup>1</sup> of this Act become apparent in the curriculum group;
- 6) the school has terminated its activity.

(2) If the right to provide instruction has been revoked, the school shall lose the right to provide instruction as of entry into force of the revocation decision.

(3) A decision on the revocation of the right to provide instruction shall be delivered to the manager of a school and to the school by post or, with the consent of the addressee, by electronic means within five working days after making of the decision.

(4) A school cannot reapply for the right to provide instruction in a curriculum group in which the right to provide instruction has been repealed on the grounds provided for in clause (1) 1), 2) or 4) of this section within three years after entry into force of the decision of revocation.

(5) A school having received a right to provide instruction in a curriculum group for a specified term shall, for the receipt of the right to provide instruction without a term, submit an application for a repeated assessment provided for in subsection 11 (1<sup>1</sup>) of this Act together with the internal assessment report at least six months before expiry of the right to provide instruction. If a school having received the right to provide instruction in a curriculum group for a specified term fails to submit an application to the Ministry of Education and Research or if the minister responsible for the area makes a decision not to grant the right to provide instruction as a result of the repeated assessment, the right to provide instruction shall terminate upon expiry of the term.

(6) If a school does not receive the right to provide instruction in a curriculum group without a term as a result of the third assessment, the right to provide instruction shall terminate upon expiry of the term.

(7) If the right to provide instruction terminates due to expiry of the term, the minister responsible for the area shall, in justified case, have the right to extend the right to provide instruction, taking into account that the pupils studying could complete their studies within the nominal duration of the curriculum, and oblige the school to terminate the admission of pupils.

(8) If the right to provide instruction is revoked based on the decision specified in subsection (1) of this section or it terminates upon expiry of the term due to the reason specified in subsection (5) of this section, the manager of a school shall notify the pupils or their legal representatives thereof and shall allow for the pupils to complete the studies either at the same or another school.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

**§ 14<sup>1</sup>. Assessment of quality of vocational training**

(1) Assessment of the quality of vocational training (hereinafter assessment of quality) is an external assessment, based on an internal assessment, conducted by external independent assessors once in every six years. In the course thereof the performance and sustainability of teaching and education, including the development of curriculum, learning and teaching, leading and management and the use of resources shall be evaluated.

(2) The assessment of quality shall be organised by the Ministry of Education and Research. The minister responsible for the area may authorise a state foundation or a person elected on the basis of Administrative Co-operation Act to organise the assessment of quality by entering into an administrative contract therefor. Supervision over the implementation of the administrative contract shall be exercised by the Ministry of Education and Research.

(3) The conditions of and procedure for quality assessment shall be established by a regulation of the minister responsible for the area.

(4) The quality shall be evaluated by an assessment council which shall be formed and the rules of procedure of which shall be approved by the minister responsible for the area or the directing body of an authorised state foundation or person elected under the Administrative Co-operation Act.

(5) The membership of the assessment council shall include:

- 1) at least three experts of broad groups of study of vocational education specified in the Vocational Education Standard, who shall be appointed by the body of chairmen of professional councils specified in subsection 7 (2) of the Professions Act;
- 2) at least six representatives of employers' central organisations and other interested parties;
- 3) at least one representative of vocational educational institutions;
- 4) at least one pupils' representative.

(6) As a result of quality assessment, the assessment council shall decide the following term of assessment and, if necessary, notify the Ministry of Education and Research of significant non-conformities in the areas specified in subsection (1) of this section.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

## **Chapter 4 Management of School**

### **§ 15. Head of school**

(1) A school shall be managed by the head of the school.

(2) A head of school shall:

1) bear liability within the limits of his or her competence for the general state, teaching and education, development activities and for legitimate and purposeful use of financial resources and assets of the school;

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

2) execute the highest administrative and disciplinary power at school within the limits of his or her competence;

3) represent the school within the limits of authorisations granted with this Act and the statutes of the school;

4) enter into contracts of employment with the employees of the school;

5) form a council pursuant to the procedure provided for in the statutes of the school;

6) approve the curricula of the school and other documents and reports prescribed by legislation, the approval of which does not fall under the competence of the council;

7) approve the budget and procurement plan of the school;

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

8) dispose of the budget funds of the school within the limits of authorisations granted with this Act and the statutes of the school;

9) [Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]

10) report to the advisory body of the school and manager of the school;

10<sup>1</sup>) organise the preparation of the school's development plan, be liable for the implementation of the development plan and approve the report on the execution of the school's development plan;

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

11) resolve other issues the resolving of which has not been delegated to other directing bodies with legislation.

(3) The head of school issues directives within the limits of his or her competence.

### **§ 16. Filling position of head of school**

(1) In order to fill a vacant position of a head of school, a public competition shall be organised.

(2) The procedure for a competition organised to fill a vacant position of a head of state school shall be established by a regulation of the minister responsible for the area.

(3) The procedure for a competition organised to fill a vacant position of a head of municipal school shall be established by the rural municipality or city government.

(4) The employment contract with a head of state school shall be entered into, amended and cancelled by the minister responsible for the area or his or her authorised representative.

(5) The employment contract with a head of municipal school shall be entered into, amended and cancelled by the mayor or rural municipality mayor or his or her authorised representative.

### **§ 17. Council**

(1) The highest collegial decision-making body of the school is the council, the function of which is to organise the activities and plan the development of the school.

(2) The procedure for formation of the council and the rules of procedure shall be provided for in the statutes of the school.

(3) The council shall include:

1) the head of school;

2) deputies of the head of school;

3) heads of structural units of the school and employees responsible for broad groups of studies;

4) representative of the student body;

5) trustee of the employees or in case lack thereof, the representative elected by the employees.

(4) The head of school shall direct the work of the council.

(5) The council shall:

- 1) discuss issues related to teaching and education and organisation of economic activities of the school;
- 2) make proposals to the manager of a school for amending the statutes of the school;
- 3) coordinate the draft development plan of the school and submit it to the manager of a school for approval;
- 4) [Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- 5) approve the rules for organisation of studies of the school;
- 6) approve the work schedule of the school for the academic year, including the training schedule of the teaching and education employees;
- 7) approve the budget and procurement plan of the school;  
[RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- 8) [Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- 9) approve the curricula of the school;
- 10) coordinate the procedures connected with state assets granted into the use of the school;  
[RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- 11) approve the statutes of the student body of the school;
- 11<sup>1</sup>) approve the number of student training places per calendar year in a broad group of studies, curriculum group or curriculum, including the number of student training places in which the study costs are not reimbursed;  
[RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- 12) [Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- 13) resolve other issues within the limits of its competence on the basis of legislation and statutes of the school.

(6) The council adopts decision within the limits of its competence.

#### **§ 18. Advisory body**

(1) The advisory body is a body of advisors connecting the school and society and the function of which is to advise the school and manager of school upon planning the development and organisation of teaching and education and economic activities.

(2) The advisory body shall have at least seven members and it shall be formed by the manager of school for five years.

(3) The advisory body shall:

- 1) make proposals to the head of school and the council in issues related to the directions of development, activity, assets, budget, management and amendment of statutes of the school;
- 2) provide assessment on the achievement of the objectives established in the school's development programme and on the cooperation of the school with state authorities, local governments and enterprises;  
[RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- 3) express an opinion on the application for the right to provide instruction in a new curriculum group;
- 4) provide assessment on the organisation of work practice at school, institutions and enterprises;
- 5) appoint a representative into the membership of the committee formed for the conduct of competition organised to fill the vacant position of a head of school;
- 6) [Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- 7) co-ordinate the number of student training places per calendar year in a broad group of studies, curriculum group or curriculum, including the number of student training places in which the study costs are not reimbursed.  
[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(4) The representative of the advisory body shall have the right to participate in the sessions of the council of the school.

(5) The procedure for formation and activity of the advisory body shall be established by a regulation of the minister responsible for the area.

#### **§ 19. Internal assessment of school**

(1) Internal assessment shall be conducted in schools. Internal assessment is a continuous process, the purpose of which is to ensure conditions promoting the development of students and the consistent development of a school.

(2) Based on the purpose of internal assessment, the internal assessment of a school shall analyse the teaching and education, the management and evaluate the performance thereof. The internal assessment shall form the basis for preparing the development plan of a school and the assessment of quality.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(3) [Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(4) [Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]

#### **§ 20. Mandatory documents of school**

The requirements for mandatory documents related to the school's development activities, teaching and education and the procedure for the maintenance of documents shall be established by a regulation of the minister responsible for the area.

#### **§ 21. Emergency planning at school**

(1) For the purposes of this Act, an emergency means an event or chain of events which endangers the life or health of persons at school, damages the environment significantly or causes extensive financial damage.

(2) The manager of school shall create possibilities for the protection of pupils and employees in case of an emergency and the head of school shall be liable for the organisation thereof.

(3) The head of school shall establish an emergency plan.

## **Chapter 5 Vocational Education Standard, Classification of Vocational Training and Curricula**

## § 22. Vocational Education Standard

The Government of the Republic shall establish by a regulation the Vocational Education Standard which shall set out the following uniform requirements for vocational training:

- 1) the learning outcomes of vocational training, including in the area of key competencies and the link thereof with the Estonian Qualification Framework;
- 2) the functions of and requirements for the curricula and studies, including the volume of studies, requirements for the commencement and completion of studies, structure and volume of the studies of key competencies and specifications of joint curricula and choice of profession curricula;  
[RT I, 28.12.2018, 3 – entry into force 01.01.2019]
- 3) the principles for amendment of curricula;
- 4) the principles for recognition of prior learning and professional experience;
- 5) the list of broad groups of studies, fields of study and curricula groups.

## § 23. Types of vocational training

(1) A type of vocational training is a classification category of vocational training curricula which is based on the levels of qualification framework (hereinafter qualification level) established in the Professions Act and accounts for the learning outcomes and requirements for commencement of studies.

(2) Vocational training is divided into formal education and continuing education:

- 1) for the purposes of this Act, formal education means vocational studies in the course of which a qualification corresponding to a certain qualification level is acquired and which enables access to the studies of the next qualification level;
- 2) for the purposes of this Act, continuing education means vocational studies in the course of which single competencies are acquired.

(2<sup>1</sup>) The choice of profession curriculum is a formal education curriculum in the course of which the competencies necessary for the commencement of professional studies shall be acquired on the second qualification level.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(3) Formal education is undertaken on the second to fifth qualification level.

(4) The placement of a curriculum on the qualification level shall be determined by the placement of a professional standard which serves as the basis of a curriculum or the learning outcomes described in the curriculum on the Estonian qualification framework. The professional standards which serve as the basis of vocational training are placed on the second to fifth qualification level. In case of lack of a professional standard or in disputed cases, the qualification level of a curriculum shall be approved by the Ministry of Education and Research, in case of military curricula by the Ministry of the Defence and in case of public defence curricula by the Ministry of the Interior.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(5) If a pupil completes the full curriculum which corresponds to the fourth qualification level, the nominal duration of which is at least three years and study volume 180 Estonian vocational education credit points and which includes the training of key competencies in the extent provided for in the Vocational Education Standard, the pupil acquires secondary education with vocational and professional competencies i.e vocational secondary education.

(6) The provisions governing further training provided for in the Adult Education Act shall be applied to continuing education.

[RT I, 23.03.2015, 5 – entry into force 01.07.2015]

(7) The conditions and procedure for organisation of continuing education shall be established by a regulation of the minister responsible for the area.

## § 24. Curricula

(1) A curriculum shall set out the objectives and functions of vocational, professional and occupational and key competencies training, the learning outcomes to be achieved and the link thereof with the Estonian qualification framework, the requirements for the commencement and completion of studies, the curriculum modules and their volume together with learning outcomes and assessment criteria, the opportunities of and conditions for choosing modules and the opportunities for specialisation. On the basis of professional standards, the curricula shall set out the professions and partial professions acquired in the course of training.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(2) Formal education curricula are divided into national curricula and school curricula.

(3) The national curricula shall be established by a regulation of the minister responsible for the area whereas the minister responsible for the area may establish the common part of all national curricula with a separate regulation.

(4) The provision of formal education shall be based on the school curricula registered in the Education Information System. The compliance of the curricula with the requirements set for the relevant curricula by legislation and whether the opening of a curriculum is justified shall be inspected in the course of registration. Curricula not meeting the requirements or the opening of which is not deemed to be justified shall not be registered with the decision of the minister responsible for the area or a representative authorised thereby. A decision shall be delivered to the school or the manager of a school having submitted the curriculum for registration whether by post or electronic means according to the request.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(5) School curricula are divided into initial training and continuing training curricula:

- 1) vocational training is provided on the basis of initial training curriculum, in which the commencement of studies does not require the existence of previous professional competencies;
- 2) vocational training is provided on the basis of continuing training curriculum, in which the prerequisite for the commencement of studies is the acquisition of profession corresponding to the previous or the same qualification level or the corresponding competencies and level of education.

(6) A curriculum of vocational secondary education shall be prepared on the basis of the Vocational Education Standard and the corresponding national curriculum. In case of lack of a corresponding national curriculum, the school shall apply for a permit therefor

from the minister responsible for the area or a representative authorised thereby before opening the curriculum. Upon grant of a permit, compliance with the requirement specified in subsection (7) of this section shall be assessed.

(7) Continuing training curriculum and initial training curriculum without the relevant national curriculum shall be prepared on the basis of the Vocational Education Standard and relevant professional standard. In case of lack of a relevant professional standard, the school shall apply for approval to the curriculum from social partners.

(8) National curricula shall not be established for military and public defence specialities. The school curricula of military and public defence specialities shall be prepared on the basis of the Vocational Education Standard and relevant professional standard in case the latter exists.

(9) Continuing training curricula raising the qualification level and initial training curricula corresponding to the fifth qualification level can be opened if the right to provide instruction in the relevant curriculum group has been granted without a term or if the opening of a curriculum is supported by the social partners corresponding to the curriculum group and the manager of a school.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

## **Chapter 6 Organisation of Studies**

### **§ 25. Admission to school**

(1) Upon the commencement of studies on the basis of a curriculum enabling the acquisition of vocational secondary education, the existence of basic education shall be required and the existence of competencies corresponding to the level of basic education from a person without basic education of at least 22 years of age. The existence of the required competencies shall be assessed by the school.

(2) Upon the commencement of studies on the basis of a curriculum corresponding to the fourth qualification level, the existence of at least basic education shall be required.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(3) Upon the commencement of studies corresponding to the fifth qualification level, the existence of secondary education shall be required.

(4) The requirements for the commencement of studies related to the relevant vocational, professional and occupational area or qualification level shall be established in the Vocational Education Standard and in the corresponding national curriculum or in case lack thereof, in the corresponding school curriculum.

(5) The procedure for the admission of pupils at school shall be established by a regulation of the minister responsible for the area.

(6) The conditions and procedure for admission at school and documents governing the organisation of studies, including the statutes of school, curricula and rules for organisation of studies and internal procedure rules shall be published on the school's website.

(7) Student cards shall be issued to students admitted to a school.

(8) The requirements for student cards and procedure for the issue of student cards shall be established by a regulation of the minister responsible for the area.

(9) In order to determine and apply the necessary support services and measures, the head of school shall have the right to process the data entered in the Education Information System by another educational institution and the extracurricular counselling team on the recommendation of the extracurricular counselling team and on the support services and measures applied to the student receiving support, but only in the scope and extent necessary for the application of support services and measures.

[RT I, 22.01.2018, 1 – entry into force 01.02.2018]

### **§ 26. Estonian vocational education credit point**

(1) Estonian vocational education credit point (hereinafter credit point) is the unit of calculation of study volume which indicates the estimated volume of pupil's work necessary for the achievement of the learning outcomes described in the curriculum. One credit point corresponds to 26 hours spent by a pupil on studies upon the acquisition of skills and knowledge.

(2) Upon the application of credit points, the bases for the application of European Credit System for Vocational Education and Training, ECVET, shall be used and calculated.

### **§ 27. Academic year**

(1) An academic year starts on 1 September and ends on 31 August of the following year.

(2) For pupils an academic year consists of at least 40 weeks of studies and at least eight weeks of holiday.

(3) The study volume for an academic year shall be 60 credit points.

### **§ 28. Forms of study**

(1) Studies shall be conducted in the form of full-time study or non-stationary study.

(2) In case of full-time study, the independent work by a pupil forms less than one-half of the study volume according to a curriculum.

(3) In case of non-stationary study, the independent work by a pupil forms more than one-half of the study load according to a curriculum.

(4) Full-time study shall be divided into school-based or workplace-based form of study.

(5) In case of school-based form of study, work practice shall constitute up to one-half of the volume of a curriculum.

(6) In case of workplace-based form of study, work practice shall constitute at least two-thirds of the volume of a curriculum.

(7) The procedure for application of workplace-based study shall be established by a regulation of the minister responsible for the area.



(8) In case of a vocational secondary education curriculum, the study load of key competencies shall not be included in the volume of a curriculum specified in subsections (5) and (6) of this section.

### **§ 29. Language of instruction**

(1) The language of instruction shall be deemed to be the language, the instruction provided in which makes at least 60 percent of the study volume provided for in the school's curriculum.

(2) The language of instruction of a vocational secondary education curriculum shall be Estonian. The language of instruction of another curriculum shall be decided by the manager of school.

(3) In case of a curriculum in which the language of instruction is other than Estonian, the instruction in Estonian shall be mandatory to the extent provided for in the school curriculum, which ensures proficiency in Estonian at a level necessary for working in the acquired profession.

(4) The requirement for the language of instruction of a vocational secondary education curriculum and the requirement for mandatory instruction in Estonian shall not be extended to pupils studying on the basis of international agreements.

### **§ 30. Work practice**

(1) Work practice is part of a curriculum in the course of which a pupil performs work and study assignments with specific study objectives in the working environment under the supervision of an instructor.

(2) Work practice and practical work performed in the study environment make at least one-half of the volume of a curriculum and are generally divided equally. In justified cases the school may amend the division of practical work and work practice.

(3) Upon organisation of the work practice of pupils, the relations between the school, the pupil or his or her legal representative and the person or institution who conducts the work practice shall be regulated by a contract entered into by them before commencement of the work practice, setting out the specific organisation of work practice and the rights and obligations of the parties to the work practice contract.

(4) The conditions and procedure for the organisation and conduct of work practice shall be established by a regulation of the minister responsible for the area.

(5) Subsections (2) and (3) of this section shall not be applied to the organisation of work practice in military or public defence specialities. The conditions and procedure for the organisation and conduct of work practice in the given specialities shall be established in the documents regulating the organisation of studies of the relevant educational institution.

### **§ 31. Assessment**

(1) Assessment is a part of the study process in the course of which a fair and unbiased assessment shall be given to the compliance of the level of competencies acquired by the pupil with the learning outcomes described in the curriculum.

(2) The uniform assessment system used in vocational training, bases for assessment of the acquisition of learning outcomes, assessment methods and criteria and descriptions of marks shall be established by a regulation of the minister responsible for the area.

### **§ 32. Specifications for organisation of studies**

(1) A school may provide vocational training for the pupils of basic school and upper secondary school, the curriculum of which shall be prepared by the school in cooperation with the basic school or upper secondary school on the basis of the relevant school curriculum and which allows pupils to acquire primary vocational, professional and occupational competencies within the framework of elective subjects prescribed on the basis of the national curricula for basic schools and upper secondary schools or the simplified national curriculum for basic schools.

(2) For the provision of instruction specified in subsection (1) of this section, a contract shall be entered into between the school and the basic school or upper secondary school in which the pupil acquires basic or general secondary education. A contract shall not be entered into in case the instruction is organised by a vocational educational institution and upper secondary school operating as a single institution.

(3) The schools shall issue certificates concerning the completion of vocational training provided at the basic school and the upper secondary school on the basis of subsection (1) of this section on the basis of which an entry certifying the completion of vocational training shall be made on the basic school leaving certificates or upper secondary school leaving certificates.

(4) At schools in which vocational training is conducted in music and performing arts curricula groups, study groups may be formed in music starting from the first form of basic school and in choreography starting from the fifth form.

(5) In the study groups specified in subsection (4) of this section, pupils shall acquire general education pursuant to the procedure provided for in the Basic Schools and Upper Secondary Schools Act.

(6) Upon graduation, the school specified in subsection (4) of this section shall issue a basic school leaving certificate or upper secondary school leaving certificate containing an entry on the completion of vocational training, or a leaving certificate of vocational educational institution or both.

(7) The conditions of and procedure for the study of pupils with special educational needs at school shall be established by a regulation of the minister responsible for the area.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(8) In order to account for the individuality of pupils, a school may make amendments or adjustments in the time of study, content and organisation of studies and study environment by preparing an individual curriculum for the pupil on the basis of the school curriculum. Thereby the learning outcomes of an individual curriculum must comply with the ones described in the school curriculum. Individual curricula shall be approved by the head of school.

(9) Basic school and upper secondary school studies for the purposes of the Basic Schools and Upper Secondary Schools Act may be opened at the school in non-stationary form of study, provided that studies based on vocational secondary education curriculum are

also conducted at the school. Opening of non-stationary study shall be decided by the manager of a school.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(10) Upon the organisation of studies specified in subsection (9) of this section, the provisions of the Basic Schools and Upper Secondary Schools Act regulating the study load, grading, curricula, allowances, school holidays, conditions for the graduation of a school and pupil's rights and obligations shall be extended to the school, in other part this Act shall be applied.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

### **§ 33. Specifications for studies in case of joint curricula**

(1) Joint curriculum means a school curriculum according to which instruction is provided at two or more schools. The requirements established for a school curriculum with this Act and the Vocational Education Standard shall be applied to joint curricula, taking account of the specifications provided for the joint curricula therein.

(2) A joint curriculum shall be prepared on the basis of a cooperation contract between schools in which the details of preparation of a joint curriculum, the organisation of instruction on the basis thereof and the issue of graduation documents have been agreed.

(3) The studies completed at schools participating in joint curriculum shall be recognised by the schools participating in the joint curriculum automatically and in full.

(4) In case of a curriculum corresponding to the fifth qualification level, joint curriculum may be applied in the cooperation of a vocational educational institution and institution of professional higher education.

(5) A cooperation contract concerning the joint curriculum shall be public.

### **§ 34. Completion of studies**

(1) Vocational training studies shall be deemed to be completed after the learning outcomes corresponding to the qualification or partial profession described in the curriculum have been achieved and a leaving certificate shall be issued to the graduate.

(1<sup>1</sup>) Choice of profession curriculum shall be deemed to be completed after the learning outcomes described in the curriculum have been achieved and a leaving certificate shall be issued to the graduate.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(2) The conditions for completion of studies cum laude of a pupil on the basis of a curriculum enabling the acquisition of secondary education shall be established by a regulation of the minister responsible for the area.

(3) The school shall enter the data of the issued leaving certificates to the Education Information System.

(4) The formats of and the procedure for issue of leaving certificates and other documents issued by the school shall be established by a regulation of the Government of the Republic.

### **§ 35. Continuation of studies**

(1) Pupils shall have the right to continue studies commenced at one school at another school on the basis of the same vocational or professional curriculum in case vacant places exist. In such case and also upon transfer to another curriculum, the principles for recognition of prior learning and professional experience shall be applied.

(2) Persons who have acquired vocational secondary education have the opportunity to continue general education studies to the extent of one academic year at a vocational educational institution or upper secondary school.

(3) The conditions of and procedure for general education studies specified in subsection (2) of this section shall be established by a regulation of the minister responsible for the area.

(4) Persons who have acquired vocational secondary education have the opportunity to continue studies on the first level of higher education.

## **Chapter 7 Members of School**

### **§ 36. Members of school**

(1) The members of school shall include the head of school, leading employees of teaching and education, teachers and other employees (hereinafter employees) and pupils and students.

(2) For the purposes of this Act, a pupil shall be a learner following the curriculum of formal vocational education.

(3) For the purposes of this Act, a student shall be a learner following the curriculum of professional higher education. The rights and obligations established with this Act shall be applied to students insofar as the Higher Education Act does not provide otherwise.

[RT I, 19.03.2019, 12 - entry into force 01.09.2019]

### **§ 37. Employees**

(1) The official duties and obligations of employees shall be determined in the job descriptions and employment contracts.

(2) The head of school shall enter into, amend and cancel employment contracts with employees.

### **§ 38. Teaching and education employees**

(1) For the purposes of this Act, teaching and education employees shall be deemed to be the head of school, leading employees of teaching and education, teachers and support specialists.

(2) The work organisation rules according to this Act shall be applied to teachers working at vocational educational institutions.

(3) The self-assessment of teachers shall be organised at schools annually. In the course of self-assessment the teacher shall prepare an assessment report on which his or her direct supervisor shall give feedback to.

(4) Teaching and education employees shall participate in further training according to the individual training need in order to maintain their professionalism. In case of teachers, practicing at an enterprise or institution shall also be taken into account as the performance of the obligation to pass further training. Practicing means professional work performed in a work environment with a specific purpose which has a direct link with the field taught by the teacher. During practice the teacher shall be released from teaching. The school shall establish the procedure for practicing.

[RT I, 23.03.2015, 5 – entry into force 01.07.2015]

(5) [Repealed - RT I, 13.12.2013, 5 - entry into force 23.12.2013]

### § 39. Qualification requirements

(1) The qualification requirements for a head of school require a Master's level degree or a qualification corresponding thereto, management competence and experience and educational competence.

(2) The qualification requirements for a leading employee of teaching and education shall require a Master's level degree or a qualification corresponding thereto, educational and management competence and at least three years of experience in education.

(3) The qualification requirements for teachers have been set out in the professional standards of teachers and vocational teachers. The percentage of teachers corresponding to the lowest level of a professional standard of vocational teacher shall not be more than 20% at the school. The restriction does not apply upon the provision of instruction in military specialities. The number of teachers who work at the school and comply with the qualification requirements must be sufficient, taking into account the scope of learning and teaching conducted thereby, to ensure the achievement of learning and teaching objectives determined in the curriculum and achievement of learning outcomes.

[RT I, 22.01.2018, 2 – entry into force 01.02.2018]

(4) The qualification requirements provided for in the regulation of the minister responsible for the area established on the basis of Basic Schools and Upper Secondary Schools Act shall be applied to support specialists.

(5) The head of school shall assess the compliance of teaching and education employees with the qualification requirements. Documents certifying foreign education shall be assessed on the conditions and pursuant to the procedure provided for in and established on the basis of § 28<sup>1</sup> of the Republic of Estonia Education Act. The recognition of professional qualifications of persons having acquired the foreign professional qualifications of a teacher or support specialist shall be based on the conditions and procedure established in the Recognition of Foreign Professional Qualifications Act. The competent authority provided for in subsection 7 (2) of the Recognition of Foreign Professional Qualifications Act is the Ministry of Education and Research.

[RT I, 30.12.2015, 1 – entry into force 18.01.2016]

(6) A vacant position of a teaching and education employee shall be filled by way of a public competition. A position of a teaching and education employee may be filled without organising a public competition if the time of work at the position is less than 50 per cent of full time.

(7) An active serviceman who complies with the requirements for competence, education and work experience described in the relevant professional standard shall be appointed to a position of a teacher with military rank.

(8) The conditions and procedure for a public competition organised to fill vacant positions of teaching and education employees shall be established by a regulation of the minister responsible for the area.

(9) If the public competition organised to fill a vacant position of a teaching and education employee fails, the head of the school may enter into an employment contract for a term of up to one year with a person who has completed at least secondary education and whose qualification and educational competence are sufficient to ensure the achievement of learning objectives and tasks determined in the curriculum and achievement of learning outcomes. If a competition organised to substitute for an employee who is temporarily absent fails, an employment contract for a specified term may be entered into with a person who has completed at least secondary education.

[RT I, 22.01.2018, 2 – entry into force 01.02.2018]

(10) A teacher may provide instruction, within three years, on a speciality or field of study for teaching in which he or she does not have the necessary qualification if he or she has started to acquire the necessary qualification.

### § 40. Working time of teachers

(1) The calculation of the working time and the remuneration of teachers shall be based on their position. The working time of teachers shall be divided between direct teaching and education and other functions arising from the employment contract, job description and work organisation rules or functions assigned by the employer.

(2) Upon the application of total working time, the period of calculation shall be an academic year. The parties may agree on the calculation period of total working time shorter than the academic year. Upon the application of total working time, the restriction established in subsection 46 (1) of the Employment Contracts Act shall be taken into account.

### § 41. Beginner's allowance for teachers

(1) Beginner's allowance for teachers is an allowance paid to teachers who commence work at school for the first time (hereinafter beginner's allowance).

(2) Beginner's allowance may be applied for by a person who complies with at least one of the following conditions:

1) has completed teacher training at a higher education level and commences work as a teacher in a school for the first time within 18 months after graduation;

2) has commenced work as a teacher for the first time in the course of teacher training or studies at the level of higher education immediately preceding teacher training provided that the period of time between the completion of previous studies and the commencement of teacher training does not exceed one year and the application for beginner's allowance has been submitted within four months after completion of teacher training at higher education level;

3) has commenced work as a teacher for the first time, except for as a teacher of general education subjects, up to three years before the commencement of teacher training at a higher education level or proving the competencies specified in the professional standard of a vocational teacher and submits the application for beginner's allowance within four months after completion of studies or

acquisition of a professional certificate of a vocational teacher, except for a professional certificate of a vocational teacher of the lowest level.

(3) In addition to the conditions provided for in subsection (2) of this section, an applicant for beginner's allowance shall:

- 1) work as a teacher in a vocational educational institution with at least 0.5 workload, whereas the 0.5 workload also includes working at the same time as a teacher at a general education school;
- 2) comply with the qualification requirements established for the position;
- 3) be proficient in Estonian at the C1 level provided for in the Language Act.

(4) The right of a person who is on pregnancy and maternity leave or a person liable to national defence obligation who has been called up to perform the conscript service duty or a person undergoing pedagogical training in a foreign country in the year of completion of teacher training at a higher education level to apply for the beginner's allowance shall be extended by the period of time of the pregnancy and maternity leave and the parental leave, the period of time during which the person performed the conscript service or the alternative service or the duration of the pedagogical training.

(5) The beginner's allowance for teachers shall be applied for, paid and returned on the basis of and pursuant to the procedure provided for in § 77 of Basic Schools and Upper Secondary Schools Act.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

#### **§ 41<sup>1</sup>. Beginner's allowance for support specialists**

(1) Beginner's allowance for support specialists is an allowance paid to a support specialist who commences work in a school for the first time.

(2) The beginner's allowance for a support specialist may be applied for by a support specialist who:

- 1) has completed support specialist training at a higher education level and commences work as a special education teacher, social educator or psychologist in a school for the first time within 18 months after the acquisition of higher education;
- 2) works as a special education teacher, social educator or psychologist in a school with at least 0.5 workload, whereas the 0.5 workload also includes working at the same time as a support specialist in general education school;
- 3) complies with the qualification requirements established for the position;
- 4) is proficient in Estonian at the C1 level provided for in the Language Act.

(3) The beginner's allowance for a support specialist shall be applied for, the right to apply shall be extended, the allowance shall be paid and it shall be returned on the basis and pursuant to the procedure provided for in § 77<sup>1</sup> of the Basic Schools and Upper Secondary Schools Act.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

#### **§ 42. Student body**

(1) The pupils and students of a school constitute the student body.

(2) Student bodies have the right to decide and manage independently, in accordance with law and legislation issued on the basis thereof, issues of student life based on the interests, needs, rights and obligations of students.

(3) A student body has the right to:

- 1) form unions and organisations with other student bodies on the basis of and pursuant to the procedure provided for in legislation;
- 2) become a member of international organisations or pursue cooperation with them;
- 3) appoint its adult representative to the school council;
- 4) decide and manage all other issues of student life which pursuant to law and legislation issued on the basis thereof are within the competence of a student body and which on the same grounds have not been transferred to any other person to decide or manage.

(4) The representative body which governs the student body is the elected student representative board which represents the student body in relations with the school and with Estonian and international organisations, agencies and persons.

(5) All students of a school have the right to elect the student representative board. The head of school shall organise the elections of the first membership of student representative board pursuant to the procedure provided for in the statutes of the school.

(6) Student bodies have statutes which provide the procedure for the formation of students' representative and executive bodies, and for the rights, obligations, liability, and rules of procedure thereof.

(7) A student body shall adopt its statutes pursuant to the procedure provided for in the statutes of the school. The student representative board shall submit the statutes of the student body to the school council for approval. The school council shall approve the statutes of the student body if the statutes comply with law and legislation issued on the basis thereof.

#### **§ 43. Rights and obligations of pupils**

(1) Pupils have the obligation to:

- 1) participate in studies by completing the curriculum and study assignments;
- 2) observe the obligations established by laws, the statutes and internal procedure rules of the school, the rules for organisation of studies and other legislation, and bear liability upon violation thereof.

(2) Pupils have the right to:

- 1) use all the opportunities created by the school for the acquisition of education;
- 2) choose elective subjects pursuant to the procedure provided for in the school curriculum;
- 3) participate in the elections of student representative board and run as a candidate for student representative board;
- 4) use the rooms, library, teaching aids, sports and technical equipment and other resources of their school in extracurricular activities without charge on the conditions and pursuant to the procedure established by the school;
- 5) receive student cards;
- 6) obtain a study allowance and a study loan under the conditions and pursuant to the procedure provided for in the Study Allowances and Study Loans Act;
- 7) obtain support for covering school lunch expenses on the conditions and pursuant to the procedure provided for in this Act;
- 8) obtain compensation for travel expenses on the conditions and pursuant to the procedure provided for in the Public Transport Act;
- 9) take academic leave;

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

- 10) obtain support services free of charge for the support of studies;
- 11) turn to a health service provider for health reasons during the studies;
- 12) exercise other rights established by law, the statutes of the school and other legislation.

(2<sup>1</sup>) A pupil has the right to take the academic leave specified in clause (2) 9) of this section:

- 1) up to one year in case of an adult applicant who studies according to a curriculum with study volume of at least 60 credit points;
- 2) up to two years for health reasons;
- 3) up to one year in the case of performing conscript or alternative service;
- 4) to care for a child until the child attains three years of age.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(3) Pupils studying in full-time study are provided with health services at school on the basis of § 43 of Basic Schools and Upper Secondary Schools Act.

(4) Pupils studying according to pre-training curricula being the basis for the training of crew members regulated with the Maritime Safety Act shall be entitled to the catering and uniform financed from the state budget. The school lunch allowance specified in § 48 of this Act does not extend to the given pupils.

(5) Pupils studying according to vocational training curricula of rescue or police specialities in full-time study shall be entitled to the catering and accommodation financed from the state budget on the conditions and pursuant to the procedure established by the school.

(6) The reimbursement of study costs may be demanded from pupils excluded from vocational training curricula of rescue or police specialty on the conditions and pursuant to the procedure provided for in § 691 of the Police and Border Guard Act.

[RT I, 19.03.2019, 12 - entry into force 01.09.2019]

## Chapter 8 Commissioned Education

**[RT I, 28.12.2018, 3 - entry into force 01.01.2019]**

### **§ 44. State-commissioned education in vocational training**

[Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]

### **§ 45. Submission of state-commissioned education request and formation of training places**

[Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]

### **§ 46. Other commissioned education**

[Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]

## Chapter 9 Financing

### **§ 47. School budget and financing**

(1) Schools shall have a budget in which all the revenues, expenses and finance transactions of the school are reflected.

(2) Schools may be financed from the state budget, rural municipality budget or city budget, income received from economic activities, revenue and donations for specific purposes and other funds.

(3) For the performance of the functions and obligations specified in § 3 of this Act, schools shall be allocated an activity support and support for specific purposes which shall be distributed to the schools with a directive of the minister responsible for the area.

(4) Activity support is a support allocated to a school for the organisation of high-quality vocational training and implementation of the school's development plan.

(5) The components of activity support are basic financing, performance-based financing and ensuring of availability. The ratio of basic financing and performance-based financing components is at least 80 per cent basic financing and up to 20 per cent performance-based financing.

(6) A support for specific purposes is an additional support determined for a school, if necessary, for the implementation of activities arising from the strategic objectives of the state.

(7) Upon calculation of the share of activity support calculated for a school from the performance-based financing, the directive of activity support or the performance of the administrative contract and the following performance indicators shall be taken into account:

- 1) the quality indicators of the provision of vocational training, including the indicators of graduating the school with a vocational examination and the indicators of workplace-based study;
- 2) the performance indicators of the provision of vocational training, including the indicators of completion of vocational secondary education curricula;
- 3) indicators of supporting the development of society, including the indicators of participation in employment and continuation of studies and the indicators of cooperation with the social partners and educational institutions.

(8) On the account of the activity support allocated from the state budget, the school shall form free of charge student training places for the calendar year. A student training place is calculated on the basis of learning outcomes in the volume of 60 credit points. The reimbursement of study costs shall not be demanded from any student studying in a free of charge student training place in any educational institution providing vocational training, regardless of the ownership form thereof.

(9) The principles of activity support specified in subsection (3) of this section and the conditions and procedure for implementation thereof and the application thereof to municipal and private schools shall be established by a regulation of the minister responsible for the area.

(10) The allocation of activity support and, if necessary, the support for specific purposes to a school administered by the state and the obligations of the school upon the organisation of vocational training shall be approved with a directive for allocation of activity support by the minister responsible for the area. The directive for the allocation of activity support shall set out, *inter alia*:

- 1) the monetary amount of activity support and, if necessary, the support for specific purposes;
- 2) the obligations relating to the provision of vocational training based on the functions of the school and needs of the state;
- 3) the number of student training places for the conduct of vocational training financed from the state budget for pupils with special educational needs and at a custodial institution.

(11) Allocation of the activity support and, if necessary, the support for specific purposes, to the manager of a municipal and private school from the state budget as well as the obligations of the school upon the organisation of vocational training shall be agreed on in an administrative contract entered into between the manager of a school and the ministry, which shall set out, *inter alia*:

- 1) the monetary amount of activity support and, if necessary, the support for specific purposes, allocated from the state budget and the allocation procedure thereof;
- 2) the functions and obligations relating to the provision of vocational training based on the needs of the state;
- 3) the number of student training placed financed from the state budget, including if necessary, separately the number of student training places for the conduct of vocational training for pupils with special educational needs and at a custodial institution.

(12) The functions and obligations specified in clause (10) 2) and clause (11) 2) of this Act in cooperation with the social partners shall be determined based on the needs of the labour market, the proposals of registered professional associations, strategic development plans of the state and development plans for different fields, studies and forecasts and the developed network of schools.

(13) The school shall be entitled to demand the reimbursement of study costs on the conditions and pursuant to the procedure established by the council from pupils not studying at student training places formed on the basis of subsection (8) of this section. The rate for reimbursement of study costs shall be established by the council at least four months before the commencement of an academic year. Upon establishment of the rate of reimbursement of study costs, the council may increase the rate by up to ten per cent in comparison with the previous academic year.

(14) The bases and conditions of and the procedure for financing the vocational training of public defence institutions of professional higher education shall be established by a regulation of the minister responsible for the area.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

#### **§ 48. Support of coverage of expenses of school lunch**

(1) Subsidies shall be prescribed in the state budget for covering the expenses of school lunch of pupils who have not completed secondary education and who study in full-time study according to initial training curricula (hereinafter school lunch allowance).

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(2) The allocation of school lunch allowance shall be based on the number of pupils specified in subsection (1) of this section, the calculated cost of a school lunch per pupil and the number of days of study in an academic year.

(3) [Repealed - RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(4) The conditions and procedure for the use of school lunch allowance shall be established by the manager of school.

(5) The conditions of and procedure for the use of school lunch allowance of state schools shall be established by a regulation of the Minister of Education and Research.

### **Chapter 10**

## **Reorganisation, Specifications for Management, Transfer and Closure of Schools**

#### **§ 49. Reorganisation and closure of schools**

(1) A school shall be reorganised and closed by the manager of school. A state school shall be reorganised and closed on the basis of an Act of the Government of the Republic, taking into account the specifications provided in this section.

(2) Schools shall be reorganised as follows:

- 1) schools shall be merged into one or several schools, whereby the merged schools shall be closed and a new school or new schools shall be founded on the basis of these schools;
- 2) a school or schools will be merged with another school and the school or schools being merged will be closed;
- 3) a school shall be divided into at least two schools and the school that is being divided shall be closed;
- 4) a school shall be separated from another school and as a result thereof a new school shall be founded and the initial school shall be preserved.

(3) No less than six months before the start of a new academic year, the school and pupils shall be notified in a form that can be reproduced in writing of a decision to reorganise and close a school. If a school does not belong under the area of government of the Ministry of Education and Research, the reorganisation or closure thereof shall be notified to the minister responsible for the area no later than six months before the start of a new academic year.

[RT I, 04.07.2017, 1 – entry into force 01.09.2017]

(4) Schools shall be reorganised or closed between 1 July and 31 August in the same year.

(5) The manager of a school shall make certain that the pupils of the closed school can continue their studies.

(6) If a school does not have the right to provide instruction in any curricula groups, the manager of school shall initiate the closure of school.

#### **§ 50. Transfer of management of school**

(1) The state has the right to transfer the management of a state school to a rural municipality or city and rural municipalities and cities have the right to transfer the management of municipal schools to the state or another rural municipality or city.

(2) Upon transfer of the management of a school, the provisions of the Law of Obligations Act regarding the transfer of enterprise shall be applied with the specifications arising from this Act.

(3) Simultaneously with the application for the transfer of the management of school, the transfer of the right to provide instruction in curricula groups of the transferred school together with other non-material assets of the school shall be applied for. An application for the transfer of the right to provide instruction in curricula groups shall be submitted to the minister responsible for the area by the rural municipality or city to which the state school or municipal school shall be transferred.

(4) The transfer of the management of a school to the state or another rural municipality or city shall be set out in an administrative contract entered into between the local government and the Ministry of Education and Research or two local governments. The administrative contract shall set out the following:

- 1) the date of transfer of the management of the school;
- 2) the functions of the school to be transferred;
- 3) the conditions of and procedure for the continuance of the studies by pupils;
- 4) the conditions of and procedure for the continuance of the work of the school employees in the school to be transferred, taking into account the provisions of the legislation regulating employment relationships;
- 5) the conditions of, procedure for and the term of transfer of the assets and property used by the school to the new manager of school, taking into account the provisions of the legislation;
- 6) the conditions of, procedure for and term of transfer of the records of the school to the new manager of school;
- 7) resolution of possible organisational and budgetary issues and issues concerning other proprietary obligations and rights relating to the transfer of the management of the school.

(5) Upon transfer of the management of a school, the new manager of the school will provide the pupils with the possibility to continue their studies at the school.

(6) The management of a school shall be transferred from 1 July until 31 August in the same year. The pupils and employees of the school will be notified of the decision to transfer the management of the school not later than two months before the start of the new academic year.

### **§ 51. Operation of vocational educational institution and general education school as single institution**

(1) A vocational educational institution and an upper secondary school provided for in the Basic Schools and Upper Secondary Schools Act may operate as a single institution. In the case provided for in the Basic Schools and Upper Secondary Schools Act, a basic school may also be combined with the upper secondary school operating as a single institution with a vocational educational institution.

(2) In case of a vocational educational institution and upper secondary school operating as a single institution, the provisions of this Act shall be applied to the part of the vocational educational institution and the provisions of the Basic Schools and Upper Secondary Schools Act to the part of the upper secondary school.

(3) In addition to the data provided for in this Act, the statutes and development plan of a vocational educational institution and upper secondary school operating as a single institution shall also include the mandatory data provided for in the Basic Schools and Upper Secondary Schools Act concerning the part of the upper secondary school. The statutes and the development plan shall be approved pursuant to the procedure provided for in this Act.

(4) A vocational educational institution and upper secondary school operating as a single institution shall have a board of trustees, the formation and activity of which shall be governed by the Basic Schools and Upper Secondary Schools Act and an advisory body, the formation and activity of which shall be governed by this Act.

(5) The upper secondary school part of a vocational educational institution and upper secondary school operating as a single institution shall have a teachers' council operating on the basis of the Basic Schools and Upper Secondary Schools Act.

(6) A vocational educational institution and upper secondary school operating as a single institution shall form a council, the formation and competence of which shall be governed by this Act.

(7) The vacant position of a head of vocational educational institution and upper secondary school operating as a single institution shall be filled on the basis of the provisions of this Act. The head of vocational educational institution and upper secondary school operating as a single institution shall have the competence arising from this Act and the Basic Schools and Upper Secondary Schools Act.

(8) The provisions of the Basic Schools and Upper Secondary Schools Act shall be applied to the reorganisation, transfer of management and closure upon the merger of a vocational educational institution and upper secondary school and vocational educational institution and upper secondary school operating as a single institution.

## **Chapter 11 Administrative Supervision**

### **§ 52. Exercise of administrative supervision**

(1) Administrative supervision over the legal activity of schools and the managers thereof shall be exercised by the Ministry of Education and Research (hereinafter the supervisory agency) with the objective of ensuring the availability of vocational education and access thereto on equal grounds, organisation of teaching and education and the quality and performance thereof.

[RT I, 04.07.2017, 1 – entry into force 01.09.2017]

(2) The supervisory body appoints the persons exercising administrative supervision, involving experts, where necessary.

### **§ 53. Functions of officials exercising administrative supervision**

[Repealed - RT I, 04.07.2017, 1 – entry into force 01.09.2017]

### **§ 54. Rights of officials exercising administrative supervision**

Officials exercising administrative supervision have the right to:

- 1) visit a school in order to inspect teaching and education, informing the head of the school thereof in advance;
- 2) participate in meetings of the directing bodies of the school, employees, pupils and parents;
- 3) examine the documents of a school;

- 4) receive information from a school concerning the implementation of legislation;
- 5) [Repealed - RT I, 04.07.2017, 1 – entry into force 01.09.2017]
- 6) [Repealed - RT I, 04.07.2017, 1 – entry into force 01.09.2017]
- 7) [Repealed - RT I, 04.07.2017, 1 – entry into force 01.09.2017]
- 8) [Repealed - RT I, 04.07.2017, 1 – entry into force 01.09.2017]

## **§ 55. Results of administrative supervision**

- (1) The results of administrative supervision shall be documented in a certificate.
- (2) The certificate shall set out the following data:
  - 1) the time and place of drawing up the certificate;
  - 2) brief details on the school;
  - 3) the supervisory body exercising administrative supervision;
  - 4) the time of exercising administrative supervision;
  - 5) the names of the officials and experts who carried out administrative supervision;
  - 6) the results of administrative supervision;
  - 7) the time and description of offences;
  - 8) the precepts issued and proposals made;
  - 9) the term of notification of complying with the precepts.
- (3) The following shall be specified in a precept:
  - 1) the name of the person or body whom the precept is aimed at;
  - 2) the obligation to perform necessary acts for the termination of an offence;
  - 3) the basis of the precept;
  - 4) the term of complying with the precept.
- (4) [Repealed - RT I, 04.07.2017, 1 – entry into force 01.09.2017]
- (5) A head of school and a manager of school shall be notified of a certificate within sixty calendar days as of the beginning of the administrative supervision.
- (6) If a manager of school fails to comply with a precept during the term specified in the certificate, the state supervisory body may impose a penalty payment pursuant to the procedure provided for in the Substitutive Enforcement and Penalty Payment Act. The upper limit for a penalty payment is 640 euros.

## **Chapter 12 Implementing Provisions**

### **§ 56. Transition related to management of school**

- (1) The statutes of a school shall be brought into conformity with the requirements of this Act by 1 January 2014. The statutes applicable upon entry into force of this Act shall be valid until they have been brought into conformity with this Act but not longer than until 1 January 2014.
- (2) School development plans approved before entry into force of this Act shall be valid until the end of their term.
- (3) The management of a school shall be brought into conformity with the requirements specified in §§ 17 and 18 of this Act by 1 January 2014. Until 31 December 2013, schools shall be managed on the basis of provisions of the Vocational Educational Institutions Act (RT I, 08.07.2011, 9) applicable before the entry into force of this Act.
- (4) The emergency plan specified in subsection 21 (3) of this Act shall be established by 1 January 2014.
- (5) The school shall ensure access to the support services specified in clause 3 (2) 2) of this Act according to the pupil's needs from 1 January 2014.
- (6) The statutes of a school shall be brought into conformity with the amendments of this Act having entered into force on 1 January 2019 by 1 September 2019.  
[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

### **§ 57. Transition to language of instruction in Estonian**

- (1) Schools shall ensure the transition to the language of instruction in Estonian in the curricula of vocational secondary education no later than by 1 September 2020.
- (2) Pupils studying according to the curriculum of vocational secondary education, whose language of instruction is not Estonian shall pass the state examination of Estonian as second language for the completion of studies pursuant to the procedure established in § 31 of the Basic Schools and Upper Secondary Schools Act and in the regulation of the minister responsible for the area established on the basis thereof. The given state examination may be substituted with passing a vocational examination or professional examination in Estonian. This provision shall not be applied to the pupils studying according to international agreements.

### **§ 58. Transition to right to provide instruction**

- (1) The right to provide instruction shall be deemed to be granted until 1 January 2017 in school curricula groups into which the curricula entered in the Education Information System as of 1 September 2013 belong and according to which instruction is provided.  
[RT I, 30.12.2015, 1 – entry into force 01.01.2016]
- (2) The extension of the right to provide instruction shall be implemented on the basis of this Act from 1 January 2014. The right to provide instruction in the curricula group specified in subsection (1) of this section shall be extended on the basis of the time schedule drawn by the institution that organises accreditation.
- (3) If the right to provide instruction shall not be extended, instruction according to the curricula belonging to the curriculum group with a valid education licence may be provided until the expiry of term of the education licence. New pupils shall not be admitted to the curriculum within such period.



(4) The right to provide instruction shall be applied for upon the establishment of a new school after entry into force of this Act or opening studies in a new curriculum group according to this Act.

(5) The right to provide instruction shall be deemed to be extended for six years in school curricula groups having received a positive assessment or full accreditation in the course of single elective accreditation conducted in 2011–2013 from the entry into force of this Act.

(6) The right to provide instruction without a term shall be deemed to be granted to curricula groups for which a school has an accreditation for six years by 31 August 2019. The quality of vocational training of the recipient of the right to provide instruction without a term shall be assessed according to the provisions of § 141 of this Act.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

(7) An assessment of the right to provide instruction shall be conducted in curricula groups in which a school has a valid right to provide instruction for three years by 31 August 2019 according to the provisions of § 11 of this Act. The costs of assessment shall be covered by the Ministry of Education and Research.

[RT I, 28.12.2018, 3 – entry into force 01.01.2019]

#### **§ 59. Transition to new vocational training curricula**

(1) The national curricula applicable at the time of entry into force of this Act shall be valid until they have been brought into conformity with this Act but not longer than until 31 December 2016.

(2) School curricula shall be brought into conformity with national curricula brought into conformity with this Act within six months starting from the entry into force of the relevant national curriculum. The new curriculum shall be applied from the beginning of the academic year following the approval thereof.

(3) Pupils admitted to school before 1 September 2017 who study according to a school curriculum which is not in conformity with this Act, and who have completed less than one-half of the volume of curriculum by the time of application of the new curriculum shall be transferred to a curriculum brought into conformity with this Act, thereby their time of studies cannot be extended upon transfer to the new curriculum. From 1 September 2017, new pupils shall be admitted only to the school curricula brought into conformity with this Act.

(4) The curricula applicable before the entry into force of this Act shall be closed no later than on 31 August 2018 and pupils shall be transferred to curricula in conformity with this Act.

#### **§ 60. Transition to new forms of study**

(1) The forms of study according to this Act shall be applied to pupils admitted to formal training after entry into force of this Act.

(2) The form of study and study load applicable before the entry into force of this Act shall be applied to pupils studying according to the curricula of vocational training without the requirement of basic education, vocational training on the basis of basic education, vocational secondary education and vocational training on the basis of basic education before the entry into force of this Act.

#### **§ 61. Transition to credit points**

Credit points shall be applied in parallel with study weeks from the entry into force of this Act. In the documents certifying studies, the study volume unit, either study week or credit point respectively, used in the curriculum being the basis for the given document shall be used. In case of the curricula prepared on the basis of this Act only credit points shall be used.

#### **§ 62. Transition to new qualification requirements for teaching and education employees**

(1) An assessment of the professional skills, proficiency and level of qualifications of teachers specified in a regulation of the Minister of Education and Research established on the basis of subsection 30 (5) of the Vocational Educational Institutions Act (RT I, 08.07.2011, 9) and governed by the conditions of and procedure for assessment referred to in the given regulation shall be organised until 31 December 2013.

(2) The job grades attributed in an assessment organised until 31 December 2013 shall remain in force until their expiry.

(3) Vocational teachers and teachers of general education subjects who commenced employment at a school before entry into force of this Act shall also be deemed to be teachers for the purposes of this Act.

#### **§ 63. Transition related to financing of schools**

(1) The financing of schools shall be brought into conformity with the requirements provided for in § 47 of this Act by 1 January 2014.

Until 31 December 2013, vocational training shall be financed on the basis of §§ 33<sup>2</sup>–33<sup>4</sup> of the Vocational Educational Institutions Act (RT I, 08.07.2011, 9) applicable before entry into force of this Act.

(2) The allowance for covering the expenses of school lunch specified in § 48 of this Act shall apply to pupils studying in full-time study according to the curricula of vocational training without the requirement of basic education, vocational training on the basis of basic education and vocational secondary education or in full-time study according to the pre-training curricula.

#### **§ 64. – § 87. [Omitted from this text.]**

#### **§ 88. Entry into force of Act**

(1) This Act enters into force on 1 September 2013.

(2) § 73 of this Act enters into force on 1 July 2014.

[RT I, 22.12.2013, 1 - entry into force 01.01.2014]